

In pursuance of clause (3) of article 348 of the Constitution of India, the following translation in English of the Government Notification, No. MWA-1015/266/CR-120/LAB-7, dated 10th August, 2020 published in the *Maharashtra Government Gazette*, Part I-L, Extra Ordinary is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra.

S. M. SATHE,
Joint Secretary to Government.

INDUSTRIES, ENERGY AND LABOUR DEPARTMENT

Madam Cama Marg, Hutatma Rajguru Chowk, Mantralaya, Mumbai 400 032
dated 10th August 2020

NOTIFICATION

MINIMUM WAGES ACT, 1948.

No. KVA-1018/CR-215/LAB-7.— Whereas, by Government Notification, Industries, Energy and Labour Department No. MWA.2013/ 52/ CR-27 /Lab-7, dated 7th August 2013, Government of Maharashtra has revised the minimum rates of wages payable to the employees employed in the scheduled employment, viz. “Employment under any Local Authority” (hereinafter referred to as “the said scheduled employment”) in the State of Maharashtra;

And whereas, the Government of Maharashtra, having reviewed the minimum rates of wages payable to the employees employed in the said scheduled employment, considers it necessary to revise them further;

Now, therefore, in exercise of the powers conferred by clause (b) of sub-section (1) of section 3 read with sub-section (2) of section 5 of the Minimum Wages Act, 1948 (XI of 1948), in its application to the State of Maharashtra, the Government of Maharashtra, after considering all the representations received by it, in respect of the proposal published in Government Notification, Industries, Energy and Labour Department No. MWA-101/CR-215 /LAB-7, dated 28th May 2019 and after consulting the Advisory Board, hereby revises, with effect from 10th August, 2020 the minimum rates of wages payable to the employees employed in the said scheduled employment and refixes them, as set out in column (3) of the Schedule appended hereto, as the minimum rates of wages payable to the class of employees mentioned against them in column (2) of the said Schedule.

SCHEDULE

Serial No.	Class of Employees	Basic minimum rates of wages (per month)		
		Zone I Rs.	Zone II Rs.	Zone III Rs.
(1)	(2)	(3)		
1.	Skilled	14,125	13,760	12,665
2.	Semi-skilled	13,420	13,055	11,960
3.	Unskilled	13,085	12,715	11,625

Explanation .— For the purposes of this notification,—

- (a) Zone I.—It shall comprise of all the village panchyats having population above 10,000;
- (b) Zone II.—It shall comprise of all the village panchyats having population between 5,000 to 10,000;
- (c) Zone III.—It shall comprise of all the village panchyats having population upto 5,000;
- (d) The minimum rates of daily wages payable to an employee employed on daily wages shall be computed by dividing the minimum rates of monthly wages fixed for the class of employees to which he belongs by twenty six, the quotient being stepped up to the nearest *paisa*;
- (e) The minimum rates of hourly wages payable to part-time employee shall be computed by dividing the daily rates of minimum wages applicable to the concerned class of employees by eight (hours) with fifteen percent in it and quotient being stepped up to the nearest *paisa*;
- (f) The minimum rates of wages shall be inclusive of payment of remuneration in respect of weekly day of rest;
- (g) The minimum rates of wages shall consist of basic rates and the Cost of Living Allowance;
- (h) A skilled employee is one who is capable of working efficiently, of exercising considerable independent judgment and of discharging his duties responsibly;
- (i) A semi-skilled employee is one who, does work generally of a well defined routine nature wherein the major requirement is not so much of the judgment, skills and dexterity, but of proper discharge of duties assigned to him for a relatively narrow job and important decisions are made by others. His work is thus limited to the performance of routine operation of limited scope;
- (j) An unskilled employee is one who does operations that involve the performance of simple duties which require exercise of little or no independent judgment or previous experience, although a familiarity with the occupational environment is necessary. His work may thus require, in addition to physical exertion, familiarity with a variety of articles or goods.

APPENDIX

The average Consumer Price Index Number in respect of 10 centers in the State of Maharashtra for working class (New Series 2001=100) shall be the Cost of Living Index Number applicable to the employees employed in the said scheduled employment. The Competent Authority appointed by the Government shall, after the expiry of every six months commencing on the first day of January and the first day of July, calculate the average of the Cost of Living Index Number applicable to the said employee for these six months and, ascertain the rise of such average over 358 points. For such rise of every point, special allowance (hereinafter referred to as "the Cost of Living Allowance") payable to the employees in the said scheduled employment for each of the six months immediately following six months in respect of which such average has been calculated at the rate of Rs. 31 per month for respect of all the *Zones*;

2. The Cost of Living Allowance computed as aforesaid shall be declared by the Competent Authority by notification in the *Official Gazette* in the last week of July, when such allowance is payable for each of the months from July to December and in the last week of January when such allowance is payable for each of the months from January to June:

Provided that, the Competent Authority shall declare the Cost of Living Allowance payable in respect of the period from the date of fixation of the rate of minimum wages to the end of December or June, as the case may be immediately after the said date with effect from which the minimum rates of wages are fixed.

By order and in the name of the Governor of Maharashtra,

S. M. SATHE,
Joint Secretary to Government.